



Omissions

Why a failure to help does not automatically create a negligence claim. This guide introduces the general rule; “Liability for Omissions” then studies the special situations in more detail.

1. An omission is a failure to act

An **omission** means not doing something. If a stranger walks past a cyclist whose bicycle has broken down and does not offer a lift, that is an omission. If the stranger drives carelessly and hits the cyclist, the danger comes from the stranger's **own activity**. The law usually treats these situations differently. [1]

Invented comparison: A visitor sees water spilled by somebody else on a pavement and does not clean it. A shop employee negligently spills water in the shop and leaves it there. “Nobody cleaned the water” describes both, but the second person's activity created the risk. Ask where the danger came from before giving an answer.

Be careful with a simple “did” versus “did not” label. A driver parks on a hill without applying the handbrake; the car rolls into another car. The omission is part of the driver's activity of using and parking the vehicle. Consider the **whole activity** and whether it made others worse off. [1]

2. The general rule in negligence

A person generally owes care not to create an unreasonable risk of foreseeable physical harm through their own conduct. They do not generally owe every stranger a duty to protect them from dangers which arise independently, such as weather, another person's wrongdoing, or the stranger's own conduct. This is a starting rule, **not** a statement that omissions can never attract liability. [1]

Duty of care asks whether the defendant owed this claimant a legal obligation to take reasonable care in these circumstances. **Breach** asks whether the defendant fell below the required standard. **Causation** asks whether the breach caused the injury. A duty question must be answered before an ordinary negligence claim can succeed.

3. Why does the law draw this boundary?

Many people could potentially help with a danger they did not create. A universal legal obligation to protect all others would have uncertain limits and could place heavy burdens on ordinary passers-by. These are reasons for the general rule, not a substitute for reading the precise facts and legal relationship in each case. [1, 2]



Stovin: a dangerous junction and an unused power

4. Stovin v Wise [1996] AC 923 [2, 3]

At a road junction, an earth bank and fence on adjoining land obstructed the view. Mrs Wise drove out from a side road and collided with Mr Stovin's motorcycle. Mr Stovin was seriously injured and sued Mrs Wise. She brought Norfolk County Council, the highway authority, into the case, arguing that it should have improved visibility. Council officers had considered removing the obstruction but did not complete the proposed work.

The council had **statutory powers** to pursue an improvement. A power means the law permits a public body to act; it does not, by itself, promise an individual that the body will act in every case or pay damages if it does not. The council had not created the obstruction. The legal question was whether its failure to use its powers generated a private duty of care to road users. [2, 3]

Who won, and why? Norfolk County Council won its appeal in the House of Lords, by a 3-2 majority. It owed no common-law duty to Mr Stovin to exercise the relevant power and improve the junction. The earlier allocation of 30% responsibility to the council could not stand. This did **not** mean that Mrs Wise won her separate dispute with Mr Stovin: her negligent driving remained distinct from the council's alleged omission. [2, 3]

5. Do not confuse public responsibility and a private claim

A council may have public responsibilities for road safety and powers to make roads safer. That does not automatically give each injured road user a **private right to damages** because a particular improvement was not carried out. The court examined the statutory scheme and the absence of a common-law duty in this setting. The mere label “discretion” is not a magic answer for all public-authority negligence cases. [3]

Invented question: A city knows that a junction is hard to see and plans a new mirror. Before it is installed, a driver fails to give way. Who caused the risk? Did the city create it, or simply fail to improve the situation? What does the relevant legislation require? A plan alone does not answer whether there is an individual damages claim.



Smith: fire started by intruders

6. Smith v Littlewoods Organisation Ltd [1987] AC 241 [4]

Littlewoods owned an empty cinema intended for redevelopment. Children and other intruders entered the building and vandalised it. Intruders deliberately started a fire, which spread and damaged neighbouring property, including commercial premises and a church. The neighbouring owners sued Littlewoods for failing to secure and watch the cinema.

Littlewoods had not been told of the earlier intrusions or attempts to light fires. The cinema was not shown to contain some unusual fire danger. The question was whether the owners had to take measures, such as continuous guarding, to protect neighbours from the deliberate acts of independent intruders in these circumstances. [4]

Who won, and why? Littlewoods won. The House of Lords dismissed the neighbours' appeals and rejected liability on these facts. The deliberate fire-setting was not established as a sufficiently foreseeable risk requiring the proposed security measures, given what Littlewoods knew or ought to have known. The decision does **not** give property owners permanent immunity whenever someone else starts a fire. [4]

7. What if the facts change?

Suppose, in an **invented** variation, neighbours repeatedly warn the owner in writing that intruders are lighting fires inside, and the owner can take a modest, effective step to remove an identified hazard. Knowledge, seriousness of risk, the owner's control and the burden of precautions could change the analysis. The outcome in Smith depended on its actual facts and the duty claimed. [4]

Third party means someone other than the claimant and defendant: here, the intruders. Their deliberate wrong is central, but the words "third party" alone are not the full legal reason. Ask what the owner knew, what risk was reasonably predictable, and what care would have been reasonable.



The reasoning in one sequence

8. Start with the source of the danger

A short method:

1. What injury or property damage occurred?
2. Did the defendant create or increase the danger through their activity?
3. If the danger arose independently, what relationship, control, undertaking, or specific legal rule might require protection?
4. If a duty exists, was it breached and did that breach cause the damage? [1]

In **Stovin**, the council was asked to improve a pre-existing road hazard by using a statutory power. In **Smith**, the owner was asked to protect neighbours from a fire deliberately started by intruders. Both failed claims involved a proposed protective duty, but they raise different questions: public powers in one, knowledge and third-party wrongdoing in the other.

9. Three common mistakes

“The harm was foreseeable, so a duty exists.” Foreseeability alone is often insufficient when the defendant did not create the danger. **“There was an omission, so nobody can sue.”** Special circumstances can produce a duty, as the companion guide explains. **“No duty means no damage occurred.”** Real injury or loss can occur without this particular defendant being liable in negligence. [1, 3, 4]

10. A simple English answer model

Question: Is a local authority liable because it did not remove a dangerous feature near a junction?

Model: First identify who created the danger and what the authority actually did. In **Stovin**, the council had a statutory power to improve visibility but did not owe the particular private duty claimed by the injured motorcyclist. A different statute or facts might require separate analysis. Do not infer liability from the accident alone.

Bridge to the next guide: Sometimes a person takes responsibility for another, has relevant control over a source of danger, or worsens matters by intervening. The companion “Liability for Omissions” guide examines those situations through further cases. [1]



Check your understanding

1. What is an omission?

Answer: A failure to do something. A legal duty to act does not arise in every situation.

2. Why is the handbrake example not settled by saying “the driver did nothing”?

Answer: Parking is part of the driver's own activity. Viewed as a whole, that activity can create an unreasonable risk.

3. Did the council in Stovin create the earth bank?

Answer: No. The claim concerned its failure to use a statutory power to improve the existing junction.

4. Who won Stovin, and what was the limit of that result?

Answer: Norfolk County Council won its appeal because no private common-law duty required the proposed improvement. Mrs Wise's separate negligent driving was a different issue.

5. Who started the fire in Smith?

Answer: Independent intruders deliberately started it, not Littlewoods.

6. Why did Littlewoods win?

Answer: On those facts, it lacked notice of the earlier intrusions and fire-setting, and the proposed burden of continuous security was not justified by the established risk.

7. Is a public power always an individual right to damages?

Answer: No. A statutory power to act does not, by itself, create a private duty owed to each injured person.

Judgments and further reading

Case facts checked 4 October 2026. The water, mirror and warning examples are invented.

[1] **Tindall [2024] UKSC 33**. Official UK Supreme Court judgment, especially paras 20-45 on the general rule and the whole activity. [Read judgment](#)

[2] **Stovin v Wise [1996] UKHL 15**. House of Lords judgment, including the majority result. [Read judgment](#)

[3] **Gorringe [2004] UKHL 15**. Official House of Lords judgment explaining Stovin, especially Lord Hoffmann paras 21-27 and Lord Steyn paras 3-5. [Read judgment](#)

[4] **Smith v Littlewoods [1987] UKHL 18; [1987] AC 241**. House of Lords judgment on the vacant cinema, fire and third parties. [Read judgment](#)